

failure to timely seek entry of default and failure to timely prosecute. The Court notes that default was entered against the only named Defendant on December 12, 2025. Plaintiff was required to obtain a default judgment within 45 days of entry of default. CRC 3.110(h). The OSC issued for failure to timely seek entry of default, not failure to timely obtain a default judgment. Due to the typographical error, the OSC cannot be sustained. The OSC that issued on April 13, 2026 is **DISCHARGED**. The Court directs the clerk to issue an OSC Re: Sanctions to Plaintiff and Counsel for failure to timely obtain a default judgment as required by CRC 3.110(h) and failure to timely prosecute. Hearing on the OSC will be on **Monday, August 3, 2026 at 8:30 a.m. in Department 63.** The Court notes that while Plaintiff has sought a default judgment twice, in both instances the proposed judgment was returned for errors made by Plaintiff. Plaintiff is **ORDERED** to obtain a default judgment by the next hearing date.

JPMORGAN CHASE BANK, N.A. VS. ABRAHAM

CASE NUMBER: 25CVG-01939

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Molly A. Abraham. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of November 23, 2026.

MCCLOSKEY VS. CITY OF REDDING

CASE NUMBER: 26CV-0209559

Tentative Ruling on Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance: Petitioner Allen Donald McCloskey filed an Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance on April 13, 2026. The Amended Petition is opposed by Respondent City of Redding.

As a preliminary matter, while Petitioner has added "Injunctive Relief Abating Public and Private Nuisance" when filing the Amended Petition, this is not proper. This case was opened as a petition for relief from the requirement that Petitioner file a government tort claim prior to filing an action against a government entity. Should Petitioner intend to move forward with any claim against Respondent, or any other government entity, Petitioner would need to file a complaint under a separate case. This tentative ruling addresses only the merits of

the government claim issue.

Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division.

Gov. Code § 945.4.

A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action.

Gov. Code § 911.2(a).

Gov. Code § 946.6(a) provides in relevant part: “If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4.” Such an application must be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6. Gov. Code § 946.6(b).

Petitioner filed a claim with the City of Redding on October 30, 2025. It is on the City of Redding claim form and has “\$75,000” written at the top. The date of occurrence is listed as “July 16, 2020 – Current Day” and the time of occurrence is listed as “October 30, 2024 – Oct.” In Item 4, Petitioner lists the injuries as Public Nuisance under Civ. Code §§ 3501 and 3490, mental suffering, loss of use and enjoyment, loss of value and “5+ year consistent major homeless encampment.” On November 12, 2025, City of Redding Risk Management sent Petitioner a Notice of Return of Late Claim and Notice of Rejection informing Petitioner that any and all claims that arose prior to six months prior to October 30, 2025 were returned as untimely and that all claims that arose within those six months were rejected.

An Application for Leave to Present a Late Claim was not submitted directly to the City of Redding, however, an employee at George Hills received an Application via email and forwarded the Application to Risk Management on December 2, 2025. In the Application, Petitioner indicates that the late claim was due to excusable neglect/reasonable mistake, physical/mental incapacity, inability to afford legal representation, and misleading statements by City agents. In the Application, Petitioner wrote, “Additionally, this delay was due to extending to the City of Redding and its acting agents the spirit of cooperation and not resorting immediately to legal posturing and/or undertaking legal actions(s). This exact sentiment can be confirmed by reviewing the number of correspondences on the matter, attempts to work with neighborhood preservation, and others.” On December 23, 2025, City of Redding Risk Management sent Petitioner a Denial of Application for Leave to Present a Late Claim.

The Petition in this matter was filed on January 2, 2026 and the Amended Petition, which is now before the Court was filed on April 13, 2026. In the Amended Petition, Petitioner wrote that in the October 30, 2025 claim, he was “seeking redress for negligence, public and private nuisance, intentional infliction of emotional distress (IIED), and negligent infliction of emotional distress (NIED).” While this appears to be the relief he is seeking now, not all of these claims were included in the October 30, 2025 Claim which then formed the basis of the Application for Leave to Present a Late Claim. In addition to identifying which claims Petitioner seeks leave for, the

timeframe for the claims must also be determined. Under the Factual Background section of the Amended Petition, Petitioner lists the underlying tort claims as “spanning from **2013 to the present day**” (emphasis in the original). Petitioner lists the homeless encampments in the Linden Avenue/Mercy Canyon area of Redding, California as being “meticulously documented in Petitioner’s Complaint filed on December 19, 2025” and wrote “**(Exhibit)**” after. However, there is no corresponding exhibit and the Court was not able to locate such Complaint in this case file. Thus, based on the arguments and evidence provided by Petitioner, the claims Petitioner seeks to file span as far back as 2013. Respondent City of Redding provided evidence that Petitioner obtained title to APN 104-450-011 on August 25, 2020. Petitioner received a Notice of Intent to Abate Public Nuisance and corresponding abatement warrant in May of 2023. At the latest, it appears that each of the claims accrued in May 2023. While it could be possible that claims accrued later, Petitioner has failed to articulate that.

If the Court were to find that the Amended Petition was timely filed for the claims at issue, relief from the failure to timely present a government tort claim would be available if the petitioner establishes by a preponderance of the evidence the failure was “through mistake, inadvertence, surprise, or excusable neglect.” Gov. Code § 946.6(c)(1); *Shank v. County of Los Angeles* (1983) 139 Cal.App.3d 152, 156.

Before a court may relieve a claimant from the statutory tort claim filing requirements, the claimant must demonstrate by a *preponderance of the evidence* both that the application to the public entity for leave to file a late claim was presented within a reasonable time *and* that the failure to file a timely claim was due to mistake, inadvertence, surprise or excusable neglect. (*Shank v. County of Los Angeles* (1983) 139 Cal.App.3d 152, 156 [188 Cal.Rptr. 644].)

The mere recital of mistake, inadvertence, surprise or excusable neglect is not sufficient to warrant relief. Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant's failure to timely present a claim was reasonable when tested by the objective “reasonably prudent person” standard. The definition of excusable neglect is defined as “neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances.” (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435 [197 Cal.Rptr. 601, 673 P.2d 271].)

Department of Water & Power v. Superior Court (2000) 82 Cal. App. 4th 1288, 1293.

Petitioner asserts that excusable neglect and mistake caused a delay in filing a claim. Petitioner argues that he was unaware of the City’s potential legal liability until recent developments, particularly *City of Grants Pass v. Johnson*. Petitioner provided no corresponding evidence. Petitioner has provided no evidence that he ever read this opinion or how it affected his decision to file a claim. Petitioner has provided no evidence regarding when the potential liability was realized by Petitioner. Even if the Court were to take the arguments made in the Amended Petition as true, insufficient information is provided. Additionally, Petitioner wrote in his Application for Leave that “this delay was due to extending to the City of Redding and its acting agents the spirit of cooperation and not resorting immediately to legal posturing and/or undertaking legal actions(s).” This directly contradicts Petitioner’s argument that the delay was due to mistake or negligence. Petitioner has failed to meet his burden to show that the delay in filing the claim was due to excusable neglect or mistake.

Gov. Code § 946.6(c) also permits Court to grant relief due to physical or mental incapacitation. Petitioner lists a number of mental and physical issues in the Amended Petition and asserts that they caused both mental and physical incapacitation. However, no evidence was provided to support these arguments. Even if the facts asserted by Petitioner were supported by competent evidence, Respondent provided evidence that Petitioner was quite active in other legal pursuits during the time frame at issue. Petitioner did not dispute this evidence. Petitioner has failed to meet his burden of showing that physical or mental incapacitation, or a combination of both, affected his ability to timely file a claim.

Petitioner also asserts other issues such as financial constraints, lack of legal consultation, and misleading and contradictory statements. None of these arguments are articulated in a manner that gives rise to a reason to provide relief and none are supported by evidence.

Respondent argues that prejudice would occur if claims as far back as 2013 were to be permitted due to the passage of time. Respondent presented evidence of clean ups that occurred in 2023 and 2024 which changed the area at issue. Respondent also argues that even now, Petitioner has not articulated the claims in manner that puts Respondent on adequate notice. Respondent has provided evidence that it would suffer significant prejudice if Petitioner were granted the relief requested.

In summary, it appears that the Amended Petition is untimely for the claims at issue. Even if relief were available, Petitioner has failed to meet his burden of showing that the delay was caused by any of the statutory grounds. The Amended Petition is **DENIED**. Petitioner provided a proposed Order, however, it was stapled to a Notice of Lodging and cannot be unstapled. Respondent is ordered to prepare an Order consistent with the Court's ruling. The clerk is directed to close the file and vacate any future dates.

STEVENSON, ET AL. VS. MERCY MEDICAL HOSPITAL, ET AL.
CASE NUMBER: 25CV-0206834

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 13, 2026 to Plaintiffs Brandy Louise Stevenson and the Estate of Jeffrey Stevenson and their counsel, Lipeles Law Group, APC for failure to appear on April 20, 2026 as ordered on February 17, 2026 and failure to timely serve pleadings as required by CRC 3.110. Plaintiffs have not responded to the Order to Show Cause and therefore provided no excuse for failing to appear on April 20, 2026 and failing to comply with CRC 3.110.

Plaintiffs' counsel was present on December 15, 2025 when the February 17, 2026 review hearing was set. The tentative ruling on February 17, 2026 set the April 20, 2026 hearing date with no appearance necessary. Plaintiffs had notice of the April 20, 2026 review hearing and did not appear.

Plaintiffs named several Defendants in their Complaint filed January 16, 2025. Plaintiffs filed a First Amended Complaint (FAC) on February 11, 2026. Attached to the FAC is a proof of electronic service on the Defendants who had already appeared. No other proofs of service for the FAC have been filed. This is the current status of each Defendant for which the FAC is not at issue:

- Mercy Medical Hospital and Ibraheem Kayali, MD, served electronically with FAC but have not answered.
- Dignity Health, no proof of service for FAC.
- Jesse Arnold ACNP/FNP, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Jeremy Wellman PA, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Matther Herring MD, not served with FAC.
- Julie McClelland MD, dismissed from Complaint on February 3, 2026 but then renamed in FAC and not served.
- Kiruba Dharaneeswaran MD, not served with FAC. Demurrer to Complaint dropped from calendar on April 20, 2026 based on filing of FAC.

Defendants Dana Detwiler CRNA, Khiara Scolari PA-C, and Pardeep Athwal MD have filed Answers to the FAC. CRC 3.110 sets timelines in which a plaintiff must serve a defendant and how quickly a plaintiff must seek